

N.Saravanan vs D.Vasthi Prabha on 10 February, 2022

Author: V.Sivagnanam

Bench: K.Kalyanasundaram, V.Sivagnanam

CMA.Nos.4237 of 2005 and 32

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED 10.02.2022

CORAM

THE HONOURABLE MR.JUSTICE K.KALYANASUNDARAM

and

THE HONOURABLE MR.JUSTICE V.SIVAGNANAM

C.M.A.Nos.4237 of 2005 and 320 of 2006
and C.M.P.No. 1032 of 2006

N.Saravanan

... Appellant/Husband in
C.M.A.Nos.4237 of 2005 and 320 of

vs.

D.Vasthi Prabha

...Respondent/Wife in
C.M.A.Nos.4237 of 2005 and 320 of

Common Prayer: Civil Miscellaneous Appeal filed under Section 19 of the Hindu Marriage Act, against the judgment and decree dated 21.10.2005 in H.M.O.P.Nos.151 of 2005 and 202 of 2003 on the file of the learned Family Court, Coimbatore.

For appellant/Husband in both C.M.As : Mr.Ramalingam
for Mr.M.Ganesa

For respondent/Wife in both C.M.As : Mr.R.Ganesh Bab

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<https://www.mhc.tn.gov.in/judis>

CMA.Nos.4237 of 2005 a

COMMON J U D G M E N T

V.SIVAGNANAM, J.

These Civil Miscellaneous Appeals arise against the order of the Family Court, Coimbatore, passed in H.M.O.P.Nos.151 of 2005 and 202 of 2003 on 21.10.2005.

2.The appellant/Husband is the petitioner in H.M.O.P.No.151 of 2005 and respondent/Wife in H.M.O.P.No.202 of 2003 on the file of the family Court, Coimbatore. The appellant/Husband filed the petition to declare the marriage with the respondent/Wife held on 10.06.2001 as null and void under Section 12(1)(c) of Hindu Marriage Act 1955. The respondent/Wife filed a petition under Section of 9 Hindu Marriage Act for restitution of Conjugal Rights. The petitioner failed and the respondent succeeded in the trial Court. Hence, the appeal.

3.The learned counsel for the appellant/husband submitted that the <https://www.mhc.tn.gov.in/judis> CMA.Nos.4237 of 2005 and 320 of 2006 appellant/Husband married the respondent/Wife on 10.06.2001 and it was registered at Madurai Thallakulam Sub Registrar Office. At the time of the marriage, the respondent/Wife stated that her date of birth is 17.08.1971, but, later the appellant/Husband came to know that her date of birth is 17.08.1967 and she is elder than the appellant/Husband. Thus, the respondent/Wife played fraud and disclosed her false date of birth and married the appellant/Husband. Since the consent of the appellant/Husband was obtained by fraud, the marriage is voidable and thus, pleaded to declare the marriage as void. But, the trial Court failed to consider the Transfer Certificate Ex.P.12 and pass port Ex.P.13, College Transfer Certificate Ex.P.20 of the respondent/Wife, in which her date of birth is mentioned as 17.08.1967. The appellant/Husband and the respondent/Wife lived only for 14 days. Thereafter, they were living separately. The appellant/Husband was living at Malaysia after the marriage, the appellant/Husband requested the respondent/Wife to come to Malaysia and asked her to produce the pass port but she refused to produce the same and also refused to go with him. The trial Court failed <https://www.mhc.tn.gov.in/judis> CMA.Nos.4237 of 2005 and 320 of 2006 to consider this fact and erred in dismissing the application and allowing the petition filed by the respondent/Wife for restitution of conjugal rights and reiterated the other grounds raised in the grounds of appeal.

4. The learned counsel for the respondent/Wife supported the order of the trial Court and further contended that the appellant/husband had not filed any document to show his date of birth to establish the fact that the respondent/wife is elder than him. In the absence of evidence to show his date of birth, the trial Court rightly dismissed the contention of the appellant/Husband that he was younger than the respondent/Wife. There is no reason to interfere with the order of the trial Court and pleaded to dismiss the appeal.

5.Heard learned counsel appearing for the appellant/Husband and learned counsel appearing for the respondent/Wife and perused the materials available on record.

6.We have considered the matter in the light of the submissions made by the counsel for the parties.

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7.The appellant/Husband had married the respondent/Wife on 10.06.2001 at Madurai. Subsequently, the marriage was registered marriage at Thallakulam Sub Registrar Office. This fact is evidenced by Marriage Invitation Ex.P.7 and Marriage Registration Certificate Ex.P.8, in the Marriage Registration Certificate the date of birth of the respondent/Wife is mentioned as 17.08.1971. According to the appellant/Husband, in Pass Port Ex.P.19 the date of birth of the respondent/wife is mentioned as 17.08.1967. Therefore, he contended that the original date of birth was not disclosed at the time of the marriage and he is younger than the respondent/Wife and could not live with her. The contention is not supported by any evidence or proof to show the appellant/Husband's date of birth. Even though, he contended that he is younger than the respondent/Wife, he have not produced any document to show his date of birth before the trial Court.

8.The trial Court discussed the evidence produced by the parties and found that the appellant/Husband did not file any documentary <https://www.mhc.tn.gov.in/judis> CMA.Nos.4237 of 2005 and 320 of 2006 evidence to show the date of birth of the respondent/Wife and hence, in the absence of any proof, his contention that he is younger than the respondent/Wife is unsustainable. The trial court rightly dismissed the contention of the appellant/Husband. The other allegation that the respondent/Wife refused to come with the appellant/Husband to Malaysia is not supported with any evidence. He had not let in any evidence before the trial Court to show that she refused to come with him to live at Malaysia and he failed to adduce any evidence that he had taken adequate steps to bring her with him to Malaysia to live with her.

9.It is apposite to note that P.W.2 Padmanabhan was a common friend of both of the families of the appellant and respondent. Admittedly, he acted as mediator. This fact has been suppressed in the petition filed by the husband. Furthermore, the trial court rightly found that his testimony no way support the case of the appellant.

10. The evidence disclosed that he deserted voluntarily without any <https://www.mhc.tn.gov.in/judis> CMA.Nos.4237 of 2005 and 320 of 2006 reason. Under these circumstances, the trial Court rightly dismissed the petition filed by the appellant/husband and allowed the petition filed by the respondent/Wife for restitution of conjugal rights. We find no reason to interfere with the order of the trial Court. There is no merit in both the appeals. Hence, dismissed the appeal.

11.In the result, these Civil Miscellaneous Appeals stand dismissed as devoid of merits. No costs. Consequently, connected miscellaneous petition is closed.

[M.K.K.S.J] [V.S.G.J] 10.02.2022 Index:yes/no Internet:yes vsn K.KALYANASUNDARAM,J.

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vs n C.M.A.Nos.4237 of 2005 and 320 of 2006 10.02.2022 <https://www.mhc.tn.gov.in/judis>